

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JERMAINE LARMON and WESLEY COBOURN,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE MICHAEL SIMMONDS and
NYPD OFFICER ABDELHAI SAHEL,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 23, 2018

Yours, etc.
SIVIN & MILLER, LLP

By _____
Edward Sivin
Attorneys for Plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Detective Michael Simmonds, c/o NYPD 69th Pct. Detective Squad, 9720 Foster Avenue,
Brooklyn, NY 11236

NYPD Officer Abdelhai Sahel, c/o NYPD 69th Pct., 9720 Foster Avenue, Brooklyn, NY 11236

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JERMAINE LARMON and WESLEY COBOURN,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE MICHAEL SIMMONDS and
NYPD OFFICER ABDELHAI SAHEL,

Defendants.

----- X

Plaintiffs, by their attorneys Sivin & Miller, LLP, complaining of defendants,
allege as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with the defendants on behalf of plaintiffs; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the causes of
action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Detective Michael Simmonds (hereinafter "Simmonds") was and is employed as a detective with the NYPD.

5. That at all times herein mentioned, Simmonds was acting within the course and scope of his employment as a detective with the NYPD.

6. That at all times herein mentioned, Simmonds was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Officer Abdelhai Sahel (hereinafter "Sahel") was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, Sahel was acting within the course and scope of his employment as an officer with the NYPD.

9. That at all times herein mentioned, Sahel was acting under color of state law.

10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

11. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

The Incidents Involving Jermaine Larmon

12. That on February 26, 2018, at the Kings County Hospital Center, in Brooklyn, NY, detectives and officers from the NYPD, including but not limited to Simmonds and Sahel (hereinafter referred to collectively as "the officers"), forcibly seized and detained plaintiff Jermaine Larmon (hereinafter "Larmon") without probable cause or reasonable suspicion to believe that Larmon committed or was about to commit any crime or criminal violation.

13. That after seizing Larmon, the officers accused Larmon of having been involved in a shooting that occurred at a different location shortly before the seizure.

14. That after being accused of having participated in the shooting, Larmon told the officers that he was not involved in the shooting and that he had been on the premises of Kings County Hospital during the time of the alleged shooting.

15. That the officers willfully ignored and disregarded Larmon's claim that he had been on the hospital premises at the time of the shooting, and willfully ignored and disregarded evidence, including but not limited to video surveillance footage from the hospital, that definitively would have exculpated Larmon.

16. That after seizing Larmon, the officers arrested Larmon without a warrant and caused him to be imprisoned at various locations, including a police precinct and Central Booking.

17. That while at the hospital and the precinct, the officers were provided with further evidence exculpating Larmon in the shooting, including but not limited to information supplied by Wesley Cobourn, who was Larmon's uncle.

18. That the officers willfully ignored and disregarded this evidence, and continued to detain and imprison Larmon.

19. That on February 26, 2018, after arresting Larmon, the officers initiated and/or caused to be initiated a prosecution against Larmon, charging him with crimes of which he was innocent and of which the officers knew or should have known that Larmon was innocent.

20. That as a result of this prosecution, Larmon was deprived of his liberty and travel.

21. That on or about February 27, 2018, the office of the District Attorney declined to prosecute Larmon further, and the prosecution terminated favorably to Larmon.

22. That at all times herein mentioned, each of the officers observed the other officers' illegal and unconstitutional conduct, had reasonable opportunities to intervene to prevent and/or stop that illegal and unconstitutional conduct, and willfully failed and refused to do so.

23. That the aforesaid actions by the officers were done intentionally and maliciously.

24. That as a result of the aforementioned actions by the officers, Larmon sustained emotion and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

The Incident Involving Wesley Cobourn

25. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

26. That just prior to seizing and detaining Larmon, the officers, on a public thoroughfare in Brooklyn, NY, forcibly seized and searched plaintiff Wesley Cobourn (hereinafter "Cobourn") without a warrant and without probable cause or reasonable suspicion to believe that Cobourn committed or was about to commit any crime or criminal violation.

27. That the aforesaid seizure and search consisted of the officers directing Cobourn to pull his vehicle over and then, with weapons at the ready, grabbing Cobourn, forcibly pulling Cobourn from his vehicle, physically pushing Cobourn, and then conducting an invasive search of Cobourn's person on a public street.

28. That the actions of the officers caused Cobourn to be placed in imminent fear for his safety and his life.

29. That at all times herein mentioned, each of the officers observed the other officers' illegal and unconstitutional conduct, had reasonable opportunities to intervene to prevent and/or stop that illegal and unconstitutional conduct, and willfully failed and refused to do so.

30. That the aforesaid actions by the officers were done intentionally and maliciously.

31. That as a result of the aforementioned actions by the officers, Cobourn sustained emotion and psychological injuries, endured and will continue to endure emotional pain and suffering and loss of enjoyment of life, and has been otherwise damaged.

Prior Incidents Involving The Officers

32. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

33. That upon information and belief, prior to the events alleged herein the officers had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

34. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that the officers had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

35. That upon information and belief, prior to the events alleged herein the City knew that the officers were unfit to act as police officers.

36. That despite the City's and the NYPD's prior knowledge of the officers' unfitness and propensities, the City and the NYPD knowingly retained the officers as NYPD officers, thereby subjecting plaintiffs to the officers' improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION BY LARMON AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

37. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

38. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of Larmon, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION BY LARMON AGAINST ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

39. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

40. That the aforesaid actions of the officers constitute a malicious prosecution of Larmon, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION BY LARMON AGAINST THE OFFICERS

(42 U.S.C. § 1983: False Arrest/Imprisonment)

41. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

42. That the aforesaid actions by the officers in arresting and imprisoning Larmon without probable cause constitute unreasonable and illegal seizures of Larmon in

violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION BY LARMON AGAINST THE OFFICERS

(42 U.S.C. § 1983: Malicious Prosecution)

43. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

44. That the aforesaid actions by the officers in prosecuting Larmon without probable cause to believe that he had committed any crime or criminal violation, constitute unreasonable and illegal seizures of Larmon in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION BY COBOURN AGAINST ALL DEFENDANTS

(Assault and Battery Under NY State Law)

45. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

46. That the aforesaid actions of the officers constitute an assault and battery of Cobourn, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION BY COBOURN AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

47. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

48. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of Cobourn, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION BY COBOURN AGAINST THE OFFICERS

(42 U.S.C. § 1983: Illegal Seizure and Excessive Force)

49. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

50. That the aforesaid actions by the officers in forcibly stopping, seizing, assaulting and battering, and using excessive force against, and searching Cobourn without a warrant and without probable cause constitute unreasonable and illegal searches and seizures of Cobourn in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**EIGHTH CAUSE OF ACTION BY LARMON and COBOURN
AGAINST THE OFFICERS**

(42 USC § 1983: Failure to Intervene)

51. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

52. That the aforesaid actions by the officers in willfully failing to intervene to

stop and/or prevent the illegal and unconstitutional conduct of their fellow officer constitute violations of those same rights that were violated by their fellow officers, and entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

NINTH CAUSE OF ACTION BY LARMON and COBOURN
AGAINST THE OFFICERS

(Negligent Hiring, Training, and Retention)

53. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

54. That the aforesaid actions by the officers and the resulting injuries to plaintiffs followed and were the result of the negligence of the City in its hiring, training, and retention of the officers.

TENTH CAUSE OF ACTION BY LARMON and COBOURN
AGAINST THE OFFICERS

(Monell Claim: Deliberate Indifference)

55. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

56. That the aforesaid actions by the officers and the resulting injuries to plaintiffs followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by the officers in which the officers violated the constitutional rights of citizens of the State of New York.

57. That by virtue of the foregoing, plaintiffs are entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on the foregoing causes of action in the form of compensatory damages in amounts that exceed

the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiffs also demand punitive damages against the officers in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiffs also demand attorney's fees against defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
October 23, 2018

Yours, etc.
SIVIN & MILLER, LLP

By _____

Edward Sivin
Attorneys for Plaintiffs
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

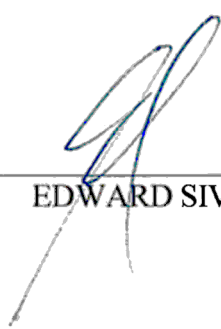
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
October 23, 2018



EDWARD SIVIN

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VERIFIED COMPLAINT

SIVIN & MILLER, LLP
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20 Vesey Street, Suite 1400
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Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.


EDWARD SIVIN

Dated: New York, New York
October 23, 2018